

4. 9:00 AM CASE NUMBER: C22-02694
CASE NAME: JANE DOE VS. GERALD BEARDEN
*HEARING ON MOTION IN RE: ENFORCE THE SETTLEMENT AGREEMENT AND STIPULATION FOR
JUDGMENT ENTERING PARTIAL JUDGMENT AGAINST DEFENDANT GERALD C. BEARDEN IN THE
AMOUNT OF \$52,934.89
FILED BY: DOE, JANE
TENTATIVE RULING:

Plaintiff Jane Doe ("Plaintiff") filed a Motion to Enforce the Settlement Agreement and Stipulation for Judgment on January 20, 2026 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on February 23, 2025. The motion is unopposed.

Background

The parties entered into that certain settlement agreement on or about October 30, 2025 (the "Settlement Agreement"), the terms of which included payment by the defendant Gerald C. Bearden ("Defendant") in the amount of \$100,000, to be paid in accordance with the terms thereof, including an initial installment payment of \$50,000 on or before November 28, 2025 (the "Payment Terms and Conditions"). See Declaration of Sandra Ribera Speed filed January 20, 2026 ("Supporting Declaration"), ¶12 *et seq.* and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit A**, ¶15 (and Exhibit A to the Settlement Agreement).

Analysis

Defendant defaulted on the Payment Terms and Conditions, at least as far as the first payment due. See Supporting Declaration, ¶¶3-4. Defendant failed to cure after notice. *Id.* at ¶4.

However, nothing in the Settlement Agreement and attached Stipulation for Judgment indicates that a judgment will be given for the first \$50,000 payment, subject, somehow to a later judgment for the additional \$50,000 if not paid. That second payment is not due until April 29, 2026 and the plain language of the Settlement Agreement contemplates entry of a judgment only if both payments are not made.

1. Defendant shall pay fifty thousand dollars (\$50,000), on or before November 28, 2025, and an additional fifty thousand dollars (\$50,000) on or before April 29, 2026, to Ribera Law Firm, APC, on behalf of Plaintiff;
2. Plaintiff shall only file or record this Stipulation for Judgment if the payment referenced in the preceding paragraph has not been paid by the due dates referenced;

Indeed, a partial judgment would be barred by the one-judgment rule. And there does not appear to be any sort of acceleration clause that would allow the entry of a judgment for the full \$100,000 amount at this time.

Disposition

The Court finds and orders as follows:

1. The Motion to Enter Stipulated Judgment after Default is DENIED, without prejudice.
2. The Court will enter the order after hearing.

5. 9:00 AM CASE NUMBER: C23-00233
CASE NAME: MAEN JWEINAT VS. NATALIE MOSS
HEARING ON SUMMARY MOTION FILED BY MAEN JWEINAT
FILED BY: JWEINAT, MAEN S.
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Maen S. Jweinatt's ("Plaintiff") Motion for Summary Judgment, or in the alternative, summary adjudication, ("MSJ/A"). The MSJ/A relates to Plaintiff's Third Amended Complaint ("3AC") for four causes of action relating to the lease of the subject commercial property located at 8065 Brentwood Boulevard, unit 4, Brentwood, California, against Natalie Moss Miladinovich, As Trustee Of The 1987 Miladinovich Family Trust Dated May 4, 1987 ("Defendant").

Plaintiff moves this Court for summary judgment, or in the alternative, summary adjudication, on the grounds that there is no triable issue of material fact, and that Plaintiff is entitled to judgment as a matter of law.

The motion is based on the following grounds:

GROUND ONE: The County's COVID-19 Emergency Ordinances Protected Plaintiff Jweinatt's Tenancy and Lease Rights;

GROUND TWO: Tenant Properly Exercised The Lease's Second Option Extending Lease Term Through December 31, 2027;

GROUND THREE: Landlord's Refusal to Acknowledge Lease Renewal and Serving Eviction Notices on Tenant Are Retaliatory and in Violation of County Ordinances;

GROUND FOUR: No Basis for Eviction of Tenant or Award of Damages to Landlord Exists; and

GROUND FIVE: Tenant has been damaged by the actions of Landlord and should recover his damages in the sum of \$55,673.00 and said sum should be trebled and should recover court costs, including reasonable attorney fees.

For the following reasons, **Plaintiff's motion for summary judgment is DENIED.**

Request for Judicial Notice

The burden is on the party seeking judicial notice to provide sufficient information to allow the court to take judicial notice. (*Ross v. Creel Printing Publishing Co., Inc.* (2002) 100 Cal.App.4th 736, 744.) "A